

26SMCV00671 26SMCV00671

County: los-angeles

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Tentative Ruling

Alexander McNeil v. Citibank, N.A., Case No. 26SMCV00671

Citibank's Motion to Compel Arbitration

Hearing Date: July 16, 2026

Background

Plaintiff Alexander McNeil, in pro per, sues Defendant Citibank, N.A. for breach of contract, breach of the implied covenant of good faith and fair dealing, conversion, negligence, violation of California Consumer Financial Protection law, and declaratory and injunctive relief. McNeil alleges that he attempted to withdraw money from his Citibank personal checking account and then close the account but was unable to do so due to a Citibank internal hold preventing him from accessing his funds. (Complaint, ¶¶ 10-14.)

On February 9, 2026, McNeil filed the complaint and an ex parte application for a temporary restraining order obligating Citibank to release his funds.

On February 17, 2026, the Court granted McNeil's protective order.

On March 11, 2026, Citibank answered.

On June 3, 2026, Citibank moved to compel arbitration. As of July 14, 2026, this motion is unopposed.

Motion to Compel Arbitration

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate a controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists” (Code Civ. Proc., § 1281.2) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

Discussion

When McNeil agreed to open his Citibank account, he clicked “agree,” acknowledging that his “new account is subject to the following agreements including the Consumer Deposit Account Agreement which includes terms that provide any dispute involving you and Citibank will be resolved by binding arbitration.” (Magine Decl., Ex. 3.)

In pertinent part, the arbitration agreement states:

PLEASE READ THIS PROVISION OF THE AGREEMENT CAREFULLY. THIS SECTION PROVIDES THAT DISPUTES MAY BE RESOLVED BY BINDING ARBITRATION. ARBITRATION REPLACES THE RIGHT TO GO TO COURT, HAVE A JURY TRIAL OR INITIATE OR PARTICIPATE IN A CLASS ACTION. IN ARBITRATION, DISPUTES ARE RESOLVED BY AN ARBITRATOR, NOT A JUDGE OR JURY. ARBITRATION PROCEDURES ARE SIMPLER AND MORE LIMITED THAN IN COURT. THIS ARBITRATION PROVISION IS GOVERNED BY THE FEDERAL ARBITRATION ACT (FAA), AND SHALL BE INTERPRETED IN THE BROADEST WAY THE LAW WILL ALLOW. Covered Disputes You or we may arbitrate any claims, dispute or controversy between you and us arising out of or related to your account(s), a previous related account or our relationship (called “Disputes”). If arbitration is chosen by any party, neither you nor we will have the right to litigate that Dispute in court or have a jury trial on that Dispute. (Decl., Exhibit 2, p. 66.)

Citibank also submits evidence that McNeil completed all of his account opening procedures and signed all required paperwork, including agreeing to the aforementioned arbitration provision. (Magine Decl., ¶¶ 8-11,

Exhibit 1.) Citibank has demonstrated the existence of a valid arbitration agreement.

Absent opposition raising any affirmative defenses or presenting evidence disputing the validity of the arbitration agreement, the Court GRANTS Citibank's Motion to Compel Arbitration.

Conclusion

Citibank's Motion to Compel Arbitration is GRANTED.

This matter is stayed pending arbitration.